

24STCV07565 24STCV07565

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Case Number: 24STCV07565 Hearing Date: August 19, 2026 Dept: 514

Felix v. Felix

24STCV07565

Defendant's Motion for Sanctions

Plaintiff's Motion to Tax Costs

Tentative Ruling

Defendant's motion for sanctions under Code of Civil Procedure section 128.5 is denied.

Plaintiff's request for attorney's fees as the prevailing party on the motion for sanctions is granted in part.

Plaintiff's motion to tax costs is denied.

Background

Plaintiff Jessica Felix ("Plaintiff") and Defendant Moises Felix ("Defendant") are former spouses.

Plaintiff alleges that some time after the dissolution of their marriage, the parties reconciled.

Plaintiff further alleges that while they were reconciled, the parties purchased a home together; that Plaintiff contributed to the expenses for and improvements of the home; that although title was placed in Defendant's name only, Defendant promised Plaintiff that she would have a 50 percent interest in the home; and that subsequently Defendant refused to transfer to Plaintiff a 50

percent interest in the property.

On March 26, 2024, Plaintiff filed the complaint in this action, asserting one cause of action to quiet title.

On April 25, 2024, Defendant filed an answer, denying the material allegations in the complaint.

On May 7, 2026, Plaintiff filed a request to dismiss the entire action without prejudice. The dismissal was entered later that day.

On July 1, 2026, Defendant filed a Memorandum of Costs.

Currently before the Court and set for hearing on August 19 are two motions.

First, on May 22, 2026, Defendant filed a motion for sanctions under Code of Civil Procedure section 128.5. Plaintiff filed an opposition on June 12, along with her own request for attorney's fees. Defendant filed a reply on June 17. The hearing was initially set for June 25 and was continued by the Court. On July 1, Defendant filed a further reply.

Second, on July 9, 2026, Plaintiff filed a motion to tax costs or to strike the Memorandum of Costs. Defendant filed an opposition on August 5, and Plaintiff filed a reply on August 12.

Legal Standard

Code of Civil Procedure section 128.5 provides, in pertinent part:

“(a) A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. ...

...

(f) Sanctions ordered pursuant to this

section shall be ordered pursuant to the following conditions and procedures:

(1) If, after notice and a reasonable

opportunity to respond, the court issues an order pursuant to subdivision (a), the court may, subject to the conditions stated below, impose an appropriate sanction upon the party, the party's attorneys, or both, for an action or tactic described in subdivision (a). In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence.

(A) A motion for sanctions under this

section shall be made separately from other motions or requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay.

(B) If the alleged action or tactic is

the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected.

(C) If warranted, the court may award to

the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion. Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees.

...

(2) An order for sanctions pursuant to

this section shall be limited to what is sufficient to deter repetition of the action or tactic or comparable action or tactic by others similarly situated. Subject to the limitations in subparagraphs (A) and (B), the sanction may consist of, or include, directives of a nonmonetary nature, an order to pay a penalty into court, or, if imposed on motion and warranted for effective deterrence, an order directing payment to the movant of some or all of the

reasonable attorney's fees and other expenses incurred as a direct result of the action or tactic described in subdivision (a).

(A) Monetary sanctions may not be awarded against a represented party for a violation of presenting a claim, defense, and other legal contentions that are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

...

(g) A motion for sanctions brought by a party or a party's attorney primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation, shall itself be subject to a motion for sanctions. It is the intent of the Legislature that courts shall vigorously use its sanction authority to deter the improper actions or tactics or comparable actions or tactics of others similarly situated.

..."

Objections
to Evidence

Plaintiff asserts 30 objections. These objections are not, technically, objections to evidence, because Defendant submits no evidence in support of his motion – and, indeed, that is Plaintiff's point. What Plaintiff objects to are factual assertions in Defendant's memorandum of points and authorities.

As Plaintiff has not objected to any evidence, there is nothing to object to, and the objections asserted by Plaintiff are overruled. Having said that, the absence of any supporting evidence for Defendant's motion is a fair point for purposes of argument, but it is not an objection to evidence.

Discussion

Defendant's Motion for Sanctions

Defendant moves under Code of Civil Procedure

section 128.5 for sanctions in the amount of \$12,500 in attorney's fees expended in defending this lawsuit. Defendant argues that the filing of the complaint was frivolous within the meaning of section 128.5: Defendant argues that the quiet title cause of action in Plaintiff's complaint was absolutely barred, as a matter of law, by the statute of frauds and the statute of limitations.

Defendant, however, presents absolutely no evidence in support of his motion. He does not present evidence, for example, about the promises alleged in the complaint (and whether they were in writing or oral), about whether there was ever any writing between the parties relating to the property at issue, or when (Defendant contends) Plaintiff became aware of the injuries alleged in the complaint. Nor does Defendant present any evidence to support the amount of fees he is requesting as a sanction.

Defendant may or may not have had good defenses to the quiet title cause of action, but, absent evidence in the record, the Court cannot determine that the cause of action was frivolous.

Defendant's motion for sanctions under Code of Civil Procedure section 128.5 is denied.

Plaintiff, in her opposition, seeks an award, as the prevailing party on this motion, of reasonable attorney's fees and expenses incurred in opposing the motion under subdivision (f)(1)(C). The Court finds that such an award to Plaintiff, as the prevailing party, is warranted. Plaintiff was compelled to have her counsel submit an opposition to this motion and to prepare and attend a hearing, even though Defendant did not submit a single shred of evidence in support of his motion.

The Court sets the amount of the award to Plaintiff under subdivision (f)(1)(C) in the amount of \$1,987.50, calculated based on 5.3 hours of attorney time multiplied by counsel's reasonable billing rate of \$375 per hour.

Plaintiff's Motion to Tax Costs

Plaintiff's request to dismiss the case was filed on May 7, 2026. The dismissal was entered by

the Clerk that same day. Defendant filed his Memorandum of Costs almost two months later, on July 1, 2026.

Plaintiff now moves to tax costs or to strike the Memorandum of Costs in its entirety. Plaintiff's sole argument is that the Memorandum was not timely under California Rules of Court, rule 3.1700.

Rule 3.1700(a)(1) provides in pertinent part as follows:

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first."

(Cal. Rules of Court, rule 3.1700, subd. (a)(1).)

Plaintiff has not shown that the Memorandum of Costs is untimely. The dismissal was entered on May 7, but no evidence is presented when (if ever) the clerk or anyone else served Defendant with a notice of entry of judgment or dismissal. Absent such evidence, Defendant's deadline to file the Memorandum of Costs was not until 180 days after entry of judgment.

On this record, there is no basis for the Court to conclude that the Memorandum of Costs was untimely. Accordingly, the motion to tax costs or to strike the Memorandum of Costs is denied.

Conclusion

The Court DENIES the motion of Defendant Moises Felix for sanctions under Code of Civil Procedure section 128.5

The Court AWARDS attorney's fees to Plaintiff Jessica Felix as the prevailing party on the motion under section 128.5

The Court ORDERS

Defendant's counsel Richard J. Rosniak to pay the expenses of Plaintiff Jessica Felix under Code of Civil Procedure section 128.5, subdivision (f)(1)(C), in the amount of \$1,987.50 to Plaintiff (through counsel) by no later than September 22, 2026.

The Court DENIES

the motion of Plaintiff Jessica Felix to tax costs or to strike Defendant's Memorandum of Costs.

The Judicial Assistant is directed to give notice.